



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing one judgment on Tuesday 26 February 2019 and eight judgments and / or decisions on Thursday 28 February 2019.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 26 February 2019

[Ana Ionescu and Others v. Romania \(application no. 19788/03 and 18 other applications\)](#)

The applicants are 34 French, German, and Romanian nationals who were born between in 1927 and 1982 respectively and live mostly in Romania.

The case concerns the nationalisation of the applicants' property by the former communist regime.

Between 1994 and 2008 the applicants obtained final court decisions finding that the nationalisation by the former communist regime of their properties had been unlawful and that they had never ceased to be the legitimate owners of those properties. Despite the fact that their title deeds were not disputed, the applicants were not able to recover possession of their properties, as the latter had already been sold by the State to third parties.

The applicants did not receive compensation for those properties.

Relying on Article 1 of Protocol No. 1 (protection of property) to the European Convention on Human Rights, the applicants submit that their inability to recover possession of their unlawfully nationalised properties or to secure compensation, despite court decisions acknowledging their property rights, amounted to a breach of their right to the peaceful enjoyment of their possessions.

Thursday 28 February 2019

[Khan v. France \(no. 12267/16\)](#)

The applicant, Jamil Khan, is an Afghan national who was born in 2004 and lives in Birmingham (United Kingdom). The case concerns the failure of the French authorities to provide care to an unaccompanied minor before and after the dismantling of the makeshift camps on the "lande de Calais" ("Calais heath"), into which large numbers of people seeking the protection of the United Kingdom have been pouring for many years.

By an order of 2 November 2015 the Lille urgent applications judge, at the prompting, in particular, of a number of non-governmental organisations (NGOs), instructed the Pas-de-Calais Prefect to ascertain the number of unaccompanied minors in distress and to co-operate with the Pas-de-Calais Département in placing them in care. The judge also ordered him to install sanitary facilities on the "lande de Calais" site.

The Government submit that all the amenities and sanitary and security facilities ordered by the urgent applications judge were installed. The applicant states that the Ombudsman's General Recommendation of 20 April 2016 mentioned that although the numbers of unaccompanied minors had indeed been ascertained as of January 2016, the counting exercise had not led to the actual provision of care for those minors. The Département Council had merely organised patrols by

insufficiently trained individuals, without the assistance of translators to prepare the minors for the actual provision of care.

On 12 February 2016 the Pas-de-Calais Prefect announced her decision to order the evacuation of the southern section of the “lande de Calais” site. The evacuation took place between 29 February and 16 March 2016. The northern section was evacuated at the end of October 2016.

The applicant submits that at the end of August 2015 he left Afghanistan for the United Kingdom, and that he reached Calais by following refugees in the hope of finding the means of crossing over to Britain. He therefore settled into a hut in the southern section of the “lande de Calais” and contacted a number of NGOs, including “Cabane juridique” (“The Legal Hut”). On 19 February 2016 that NGO requested a provisional care order for the applicant from the Children’s Judge. The latter appointed a statutory representative and ordered the applicant’s provisional placement at the Calais Children’s and Family Affairs Department as of 23 February 2016.

The applicant points out that neither the Département nor the Prefecture took any practical action to protect him. The Government observe that the social welfare services were unable to implement the placement order because the applicant had not attended the welfare offices and his lawyer, his statutory representative and the NGO involved had not informed them of his whereabouts.

During the week of 20 March 2016 the applicant left the “lande” site and illegally entered Britain, where he was taken into care by the UK child welfare agencies.

Relying, in particular, on Article 3 of the Convention (prohibition of inhuman and degrading treatment), the applicant complains of the French authorities’ failure to comply with their duty to protect unaccompanied foreign minors like himself on the “lande de Calais” site. He complains that the order provisionally placing him in the child welfare centre had not been enforced.

[H.A. and Others v. Greece \(no. 19951/16\)](#)

The applicants are nine migrants (six Syrian nationals, two Iraqi nationals and one Moroccan national) who entered Greece just before the signature of the immigration agreement concluded on 18 March 2016 between the Member States of the European Union and Turkey, entitled the “EU-Turkey Declaration”, in order to travel on to other European countries. They were between 14 and 17 years of age at the material time.

The case concerns the arrest of the applicants, nine unaccompanied minors, and their placement in different police stations in northern Greece and in the Diavata centre.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 13 (right to an effective remedy), all the applicants complain of their conditions of detention and of their lack of an effective remedy under which to complain about those conditions. Furthermore, under Article 3, two of the applicants claim to have been ill-treated by police officers at Kilikis police station and not to have benefited from an effective investigation into their allegations on that count.

Relying on Article 5 §§ 1 (d), 2 and 4 (right to liberty and security/right to be promptly informed of the charges against them/right to a speedy decision on the lawfulness of their detention), all the applicants complain that they were placed in police station cells with adults detained under the ordinary criminal law, despite their status as unaccompanied minors; that they were not informed in a language which they understood of the reasons for their detention; that they were unable to lodge an appeal challenging the lawfulness of their detention on the grounds that they had not been notified of the decision to detain them; and that they had no access to a lawyer or an interpreter.

[Beghal v. the United Kingdom \(no. 4755/16\)](#)

The case concerns the use of counter-terrorism legislation giving immigration officers the power to stop, search and question passengers at ports, airports and international rail terminals.

The applicant, Sylvie Beghal, is a French national who was born in 1969 and lives in Leicester (United Kingdom).

On 4 January 2011 Mrs Beghal arrived at East Midlands Airport following a visit to her husband, who was in prison in France for terrorism offences. Her flight landed at 8.05pm.

She was stopped under counter-terrorism legislation, namely Schedule 7 of the Terrorism Act 2000, giving police and immigration officers the power to stop, search and question passengers at ports, airports and international rail terminals. The legislation does not require prior authorisation and the power to stop and question may be exercised without suspicion of involvement in terrorism.

Mrs Beghal was told by border officials that she was not under arrest and that they did not suspect her of being a terrorist, but that they needed to speak to her to establish if she might be “a person concerned in the commission, preparation or instigation of acts of terrorism”.

After being given time to pray, she was searched, allowed to speak with her lawyer by telephone and then taken to an examination room where she was questioned for about 30 minutes. She refused to answer questions without her lawyer present. She was told that she was “free to go” at around 10 p.m.

She was subsequently charged with, in particular, wilfully failing to comply with a duty under Schedule 7. She pleaded guilty in December 2011 and was conditionally discharged.

She challenged the powers given to the police under Schedule 7 before both the High Court and the Supreme Court, alleging a violation of her rights under the European Convention. However, the national courts found in particular that the Schedule 7 powers were “in accordance with the law” and proportionate.

Ms Beghal alleges that the police powers under Schedule 7 of the counter-terrorism legislation breached her rights under Article 5 (right to liberty and security), Article 6 (right to a fair trial) and Article 8 (right to respect for private and family life).

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court’s online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tepa v. Austria (no. 13573/14)

Peikrishvili and Basiladze v. Georgia (no. 53191/10)

Draniceru v. the Republic of Moldova (no. 31975/15)

Formela v. Poland (no. 31651/08)

Pankiv v. Ukraine (no. 37882/08)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.